



POLICE DEPARTMENT

-----X
In the Matter of the Disciplinary Proceedings :

- against - :

FINAL

Police Officer Alisa Bajraktarevic :

ORDER

Tax Registry No. 951518 :

OF

Quartermaster Section :

DISMISSAL
-----X

Police Officer Alisa Bajraktarevic, Tax Registry No. 951518, having been served with written notice, has been tried on written Charges and Specifications numbered 2023-28857 and 2024-30411, as set forth on form P.D. 468-121, dated July 28, 2023 (amended on May 16, 2024), and April 8, 2024 (orally amended on January 16, 2025), respectively, and after a review of the entire record, Respondent is found Guilty of Specifications 1-4 on Case No. 2023-28857 and Specifications 1 and 2 on Case No. 2024-30411.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Alisa Bajraktarevic from the Police Service of the City of New York.


HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER

EFFECTIVE:

5/2/25

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POLICE DEPARTMENT

March 4, 2025

-----X

In the Matter of the Charges and Specifications	:	Case Nos.
- against -	:	2023-28857
Police Officer Alisa Bajraktarevic	:	2024-30411
Tax Registry No. 951518	:	
Quartermaster Section	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Matthew McCarthy, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: John Tynan, Esq.
Worth, London & Martinez, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

Disciplinary Case No. 2023-28857

1. Said Police Officer Alisa Bajraktarevic, while off duty and assigned to the Fleet Services Division, on or about and between May 3, 2023 through July 25, 2023, failed to comply with a lawful order, in that said Police Officer continued a prohibited personal relationship with an individual known to the Department despite a lawful order not to do so.

A.G. 304-03, Page 1, Paragraph 2

COMPLIANCE WITH
ORDERS

2. Said Police Officer Alisa Bajraktarevic, while off duty and assigned to the Fleet Services Division, on or about and between May 3, 2023 through July 25, 2023, did knowingly associate with persons or organizations reasonably believed to be engaged in, likely to engage in, or to have engaged in criminal activities.

A.G. 304-06, Page 2, Paragraph 8(c)

PROHIBITED CONDUCT

3. Said Police Officer Alisa Bajraktarevic, while assigned to the Fleet Services Division, on or about April 21, 2023, failed to secure her expired parking plaque, as it was displayed in the front windshield of her vehicle in a non-designated self-enforcement zone while off duty. *(As added)*

P.G. 219-29, Page 6

DISTRIBUTION AND USE
OF NYPD RESTRICTED
PARKING PERMITS

4. Said Police Officer Alisa Bajraktarevic, while assigned to the Fleet Services Division, on or about and between February 9, 2023, and March 2, 2023, wrongfully conducted inquiries on a Department database, unrelated to the official business of the Department. *(As added)*

P.G. 219-14, Page 1, Paragraph 2

DEPARTMENT COMPUTER
SYSTEMS

5. Said Police Officer Alisa Bajraktarevic, while off duty and assigned to the Fleet Services Division, on or about April 21, 2023, engaged in conduct prejudicial to the good order, efficiency, and discipline of the Department, to wit: Said Police Officer Alisa Bajraktarevic failed to identify herself as a Member of the Service after being involved in an off-duty incident. *(As added)*

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

Disciplinary Case No. 2024-30411

1. Said Police Officer Alisa Bajraktarevic, on or about and between July 26, 2023, through January 14, 2024, while off duty and assigned to the Quartermaster Section, failed to comply with a lawful order, in that said Police Officer continued a prohibited personal relationship with an individual known to the Department despite a lawful order not to do so. *(As amended)*

A.G. 304-03, Page 1, Paragraph 2

COMPLIANCE WITH
ORDERS

2. Said Police Officer Alisa Bajraktarevic, on or about and between July 26, 2023, through January 14, 2024, while off duty and assigned to the Quartermaster Section, did knowingly associate with persons or organizations reasonably believed to be engaged in, likely to engage in, or to have engaged in criminal activities. *(As amended)*

A.G. 304-06, Page 2, Paragraph 8(c)

PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on January 16 and February 3, 2025. Respondent, through her counsel, entered a plea of Guilty to Specifications 3 and 4 in Disciplinary Case No. 2023-28857, and pleaded Not Guilty to the remaining charges in that case and to both charges in Disciplinary Case No. 2024-30411. The Department called Sergeant Jason Sanchez-Escobar as a witness. Respondent called Lieutenant Dina Sanfratello as a witness, and testified on her own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find as follows:

Case No. 2023-28857

Specification 1 (disobeyed order): Guilty

Specification 2 (criminal association): Guilty

Specification 3 (parking plaque): Pled Guilty

Specification 4 (computer inquiries): Pled Guilty

Specification 5 (failed to identify as MOS): Not Guilty

Case No. 2024-30411

Specification 1 (disobeyed order): Guilty

Specification 2 (criminal association): Guilty

Recommended penalty: Termination from the Department.

ANALYSIS

The charges in these two cases stem from Respondent's association with an individual ("K.H.") who had a criminal history, including a violent felony conviction for Assault in the Second Degree. Respondent began dating K.H. in June 2022. It is alleged that despite repeated warnings from the Department, beginning on May 3, 2023, to cease her association with him, Respondent continued to be with K.H. until January 2024. Respondent acknowledges this association, but contends that she was involved in an abusive relationship with this individual, and there were financial matters between them that needed to be settled, which left her unable to terminate their association sooner than she did.

Sergeant Jason Sanchez-Escobar from the Internal Affairs Bureau ("IAB") testified that the connection between K.H. and Respondent came to the attention of the Department on March 11, 2023, when K.H. was confronted by police officers for being the operator of a double-parked car. In an interaction that was recorded by the Body-Worn Camera ("BWC") of one of the officers (Dept. Ex. 1), K.H. refused to move the car, cursed at the officers, and was issued a summons for disorderly conduct. Subsequent investigation revealed that the vehicle was registered to Respondent. (Tr. 39, 45-48, 83)

In a second incident on April 21, 2023, officers observed the same vehicle legally parked on K.H.'s block, but with an expired NYPD parking plaque displayed in the windshield.

According to Sergeant Sanchez-Escobar's review of the IAB file, while the officers were at the scene, Respondent approached them and had a conversation about the vehicle, but she did not identify herself as a member of service. Sometime later, after Respondent had stepped away from the car, K.H. approached and had an interaction with officers at the scene, which was captured by the BWC of one of the officers. (Dept. Ex 2) During that interaction, K.H. verbally abused and threatened the officers, and was eventually handcuffed and taken into custody. Sergeant Sanchez-Escobar testified that based on his review of the file, Respondent had informed Department investigators that she was across the street during this incident involving K.H., and she is not seen at the location in the BWC footage. (Tr. 49-50, 53-56, 84-87, 100-01)

On the following day, April 22, 2023, Respondent was officially interviewed by members of Bronx Investigations. The recording of the interview, and the accompanying transcript, were admitted into evidence as Department Exhibits 5 and 5A. In that interview, Respondent was questioned about the events of April 21 involving her vehicle. She stated that initially two officers approached her legally parked car. Respondent walked over and asked if something was wrong, and the officers merely pointed out that she was in a drug-prone location. Respondent claimed that she could not recall whether her expired parking plaque was in the window, or whether she, or possibly a friend, went inside the car to remove the plaque. According to Respondent, sometime later K.H. approached the vehicle and became involved in an altercation with other officers, who placed him in handcuffs. Respondent was sitting across the street, about 10-15 feet to the side, and did not approach, identify herself, or get involved in any way. During the interview, Respondent initially denied being involved in a romantic relationship with K.H., but later conceded that he was her boyfriend since June 2022. She acknowledged being aware that K.H. had a criminal arrest record, but claimed not to know the specifics. Respondent was

not ordered during this interview to stop associating with K.H. (Tr. 89-90; Dept. Ex. 5A at 6-9, 13-15, 18-19, 23-25, 27, 31, 33-36)

Following the April 21 incident, IAB also conducted a DAS audit of Respondent, and uncovered several instances of computer misuse. Sergeant Sanchez-Escobar testified that on February 9, 2023, Respondent did a search of 911 calls in connection with a report of shots fired on the block where K.H. resided. A week later, Respondent used the Department's database to conduct searches related to her vehicle as well as one owned by the family of K.H., in connection with summonses that had been issued to the two cars. On March 2, 2023, Respondent did another search regarding a 911 call on K.H.'s block. None of these searches were connected to official Department business being performed by Respondent. (Tr. 56-58, 90-92)

A second official Department interview of Respondent occurred on May 3, 2023. A recording of that two-part interview, and the accompanying transcripts, were admitted into evidence as Dept. Exhibits 6 and 6A-C. In that interview, Respondent again acknowledged that K.H. was her boyfriend. She admitted that she improperly used the Department's database to conduct an inquiry of a vehicle belonging to K.H.'s mother to see if there were any summonses. On two separate dates, she also wrongfully reviewed records of 911 calls from the vicinity of where K.H. resided. The IAB sergeant informed Respondent that K.H. had a criminal history, including a violent felony conviction and a misdemeanor conviction.¹ The sergeant ordered Respondent to "immediately cease any and all associations with this individual." He also informed her that failure to do so would constitute a failure to obey a lawful order, subjecting her to suspension. Respondent confirmed that she understood the order. (Dept. Ex. 6B at 6-7, 10-12, 14-16)

¹ K.H.'s official Record of Arrest and Prosecution indicates that he was convicted of Assault in the Second Degree in 2014, and Criminal Possession of a Controlled Substance in the Seventh Degree in 2019. (Dept. Ex. 9)

Notwithstanding this instruction, Respondent continued to associate with K.H. between May 3, 2023 and January 14, 2024. Sergeant Sanchez-Escobar testified that through surveillance conducted by IAB, Respondent was repeatedly observed with K.H. during that time period. For instance, from May through December of 2023, K.H. was seen at Respondent's Yonkers residence more than 50-60 times, regularly going in and out as if he lived there with her. In video footage from a neighbor's doorbell camera, K.H. was seen with Respondent at her Yonkers home on three separate dates in June 2023. (See Dept. Exs. 2A-2D) Additional footage from pole cameras situated outside the front entrance to the Yonkers residence captured K.H. at the location on multiple occasions in July and October 2023. (See Dept. Exs. 3A-3C) After Respondent moved to the Bronx late in 2023, a pole camera outside that residence captured K.H. at the location on January 14, 2024. (See Dept. Ex. 3D) Sergeant Sanchez-Escobar testified that there also was additional footage capturing K.H. and Respondent together after January 14. (Tr. 61-71, 92-93, 98)

In the midst of this surveillance, Respondent was brought back for another official Department interview on July 25, 2023. A recording of that two-part interview, and the accompanying transcripts, were admitted into evidence as Dept. Exs. 7 & 7A-C. In that interview, Respondent acknowledged that despite being ordered to cease any association with K.H., she continued to see him every other day, he slept over at her place once or twice a week, and they communicated with each other daily, either through text messaging or otherwise. Respondent was suspended for her failure to obey a lawful order, and again ordered by the IAB sergeant not to associate with K.H. (Dept. Ex. 7B at 9, 13-16, 7C at 2-4)

When Respondent continued to associate with K.H., she was again interviewed by IAB on April 4, 2024. In that interview, Respondent was informed that she was observed associating

with K.H. into January 2024. Specifically, they were seen food shopping together, going to the laundromat, kissing each other, and walking their dog. Even after Respondent moved to a new address in the Bronx, she and K.H. continued to be together almost every day. Respondent acknowledged their ongoing association, but explained that she “had a lot of things to tie up with him,” such as car insurance, credit card bills, and what to do with their dog. She claimed that she was “trying to sever” their relationship in the calmest way possible, but toward the end K.H. “became unhinged,” refused to leave, and threatened to break her things and destroy her career. Respondent conceded that she never filed a report against K.H., nor did she reach out to the Department to explain the situation or ask for help, even though a captain who was present during the July 25 interview had given her his card and encouraged her to reach out to him if she was having any problems getting out of her relationship with K.H. According to Respondent, their relationship ended in January 2024, and she no longer had any contact with him. At the conclusion of the interview, Respondent was again suspended for her failure to obey a lawful order. (Dept. Ex. 8A at 10-11, 16-19, 22, 25, 29-30, 32)

Sergeant Sanchez-Escobar testified that in April 2024, IAB received from an unknown source a copy of an Instagram exchange between Respondent and K.H. (Dept. Ex. 4) In that exchange, K.H. stated that they should go their separate ways, because he did not want her to get in trouble because of him. Respondent urged him, “Don’t do this to me right now, I’m just tryin to remain in a positive mind set right now.” She posted a heart emoji, and then stated, “Yeah ima kill myself.” According to Sergeant Sanchez-Escobar, when Respondent was questioned about this exchange by a duty captain in April 2024, she confirmed that this was a conversation she had with K.H., which occurred approximately one year prior. (Tr. 73-79)

Respondent testified at trial that she began dating K.H. in June 2022, and that she continued to have contact with him until late in January 2024. She conceded she was aware that he had a criminal history, but did not know the specifics until she was told the details of his record during her May 3, 2023 official Department interview. Respondent admitted that on several occasions, she used the Department's database to conduct inquiries not related to her official Department business. Specifically, she ran the license plate of a vehicle owned by K.H.'s mother to check for summonses, and did the same for her own car as well. Respondent also ran a computer check on a job the Department handled on K.H.'s block, to make sure it did not occur in the apartment building where K.H. and his mother resided. (Tr. 160, 176-77, 193, 211-12, 226)

Regarding the incident of April 21, 2023, where K.H. was taken into custody after an altercation with the police, Respondent testified that she saw two officers approach her legally parked car approximately two hours earlier. She admitted that she had her official parking plaque on the dashboard, even though she was on vacation at the time and not involved in any official Department business. Respondent approached the officers, identified herself as an MOS, and confirmed with them that she was the vehicle's owner. She asked them if there was a problem, and the officers informed her that the car was parked in a drug-prone location. Respondent then crossed the street back to the stoop where she continued to hang out with K.H. and his sister and mother. She was still there when the altercation between K.H. and multiple officers occurred two hours later. (Dept. Ex. 1B) Respondent testified that she did not want to interfere and possibly make matters worse, so she remained across the street and did not assist the officers, nor did she identify herself to them as an MOS. (Tr. 162, 165-73, 178-79, 195-99, 202, 206-09)

In her official Department interview on May 3, 2023, Respondent was ordered to end her relationship with K.H. and cease all contact with him. She testified at trial that there were financial matters between them that needed to be settled, such as removing him from her car insurance, and settling credit card bills (including approximately three thousand dollars that he owed her), which delayed the ending of their relationship. As such, she continued having contact with K.H., in person and by phone, and was brought back for another Department interview on July 25, 2023, where she again was ordered to end their relationship. Respondent testified that she was told by the investigators, off the record, that she would have “ample time” to sever her ties with K.H., and she spent the next six months slowly trying to end their relationship. She conceded that she continued to have physical contact with K.H. until sometime in January 2024. (Tr. 181-83, 185, 188-89, 212-14, 223-25)

According to Respondent, K.H. was verbally abusive toward her during their relationship, which she described as “rough.” She related several specific examples, such as how he told her she “was worthless” and “would never be anything.” He said to her that she was 35 years old, damaged goods, and that no one else would want to be with her. Respondent testified that K.H. also was physically abusive: on one occasion in May 2023, he shoved her into a wall, and threw hangers at her face.² He also smashed her plants on the floor and put her face into the dirt. On another occasion, he kicked the door off its hinges and trashed her apartment. In January 2024, after she had moved to the Bronx, he threatened that she would lose her career. Near the end of their relationship, in late January 2024, K.H. climbed through her apartment window and took her dog, but returned it about 10-15 hours later after Respondent pleaded with him. That was the last time they were together in person, and she no longer has any contact with

² According to Respondent, this incident caused the injuries observed by Lieutenant Dina Sanfratello, as discussed below. (Tr. 215-16)

K.H. at all. Respondent never reported this abuse to the Department, even after her good friend, Lieutenant Sanfratello, advised her to let the Department know. Respondent testified that she is not sure why she did not report the abuse, saying only that it was not an easy thing to talk about, and “it’s a lot harder when it’s your personal life.” Respondent also acknowledged, however, that in April 2023, it was K.H. who tried to end their relationship, and that she had responded, in an Instagram post (Dept. Ex. 4), that she would kill herself if he did so. (Tr. 183-87, 189-92, 215-19, 224-27)

Lieutenant Dina Sanfratello testified that in mid-May of 2023, both she and Respondent were assigned to Fleet Services. On one occasion, she observed Respondent at work with a black eye and scratches on her face. Sanfratello, who was friends with Respondent, asked her what happened, and Respondent told her that her dog had caused the injuries. Even though she knew that the dog “was a little on the wild side,” Sanfratello did not believe that the dog caused the injuries. During a phone conversation a month or so later, Respondent told Sanfratello that her boyfriend, whom she did not name, was breaking things in her apartment and was “out of control.” Sanfratello testified that Respondent sounded very upset, and also stated that the boyfriend threatened to call the job about her. Sanfratello advised Respondent to stay away from him and end the relationship now, and that she should let the Department know about the situation. (Tr. 130-36, 139-41, 143-51)

The most serious charges against Respondent allege that she knowingly associated with K.H. for an extensive period of time, and that she repeatedly disobeyed lawful orders from the Department to cease that association. Specifications 1 and 2 under *Case No. 2023-28857* cover the time period from May 3 through July 25, 2023, while Specifications 1 and 2 under *Case No. 2024-30411* charge Respondent with the same misconduct from July 26, 2023 through January

14, 2024. Section 304-06 (8)(c) of the Administrative Guide prohibits a member of service from knowingly associating with any person reasonably believed to be engaged in, likely to engage in, or to have engaged in criminal activities. Section 304-03 (2) of the Administrative Guide requires an MOS to obey lawful orders and instructions of supervising officers.

It is undisputed that Respondent did knowingly associate with K.H., her boyfriend, during the time periods in question, and that she did so even after having twice been lawfully ordered by the Department not to do so. Having reviewed the recordings of Respondents' official Department interviews on May 3, 2023, and July 25, 2023, I find that she was clearly instructed to immediately cease associating with K.H., who had a violent felony record. Despite those orders, Respondent remained in a relationship with K.H., and continued having contact with him until late in January 2024, approximately eight months after the initial order to discontinue the association. I credit the testimony of Sergeant Sanchez-Escobar that from May to December, 2023, Respondent and K.H. were observed together at Respondent's Yonkers residence on more than 50 occasions, some of which were captured by surveillance footage. They continued to be seen together even after Respondent moved to the Bronx. At trial, Respondent, herself, admitted to this ongoing contact with K.H.

In her defense, Respondent raised several issues that she claimed contributed to her delay in ending her relationship with K.H. in a more timely manner. For instance, Respondent claimed that she had financial entanglements with K.H. that prevented her from ceasing their association sooner. However, even if there were some matters that needed to be attended to, such as the car insurance and credit card debt, that did not justify a delay of *eight months* before Respondent ended contact with K.H. During that time, she did not reach out to the Department for assistance. Instead, she continued to associate with K.H. in defiance of two lawful orders. I find

that the eight months Respondent took to end her association was far beyond what was reasonable under the circumstances.

At trial, Respondent also argued that she was involved in an abusive relationship with K.H., which further hindered her ability to end her association with him. After carefully reviewing the evidence, I reject that argument as well. First, Respondent never made a complaint to the Department alleging that she was the victim of such abuse, nor did she reach out for help from the job, even after Lieutenant Sanfratello advised her to do so around June of 2023. Indeed, Respondent did not inform the Department about this alleged abuse until well after-the-fact, in her official Department interview of April 4, 2024. Even then, she stated that it was not until December 2023, towards the end of their relationship, that she started feeling “uncomfortable” around K.H. Indeed, during that same interview, the captain who was questioning Respondent reminded her that he had given her his card after the July 2023 interview and told her that she should reach out to him if she was having any problems getting out of her relationship with K.H. Respondent acknowledged that she never reached out for any such assistance. (Dept. Ex. 8A at 16-18, 30)

Further undermining Respondent’s defense was her Instagram exchange with K.H. around April 2023. (Dept. Ex. 4) Although Respondent was adamant at trial that she was actively trying to get out of her relationship with K.H., when he gave her the opportunity to go their separate ways she urged him not to end things between them.

Taken as a whole, I am persuaded by the credible evidence that Respondent made a deliberate choice to continue her wrongful association with K.H. for an eight-month period beginning May 3, 2023. She did so despite receiving two lawful orders instructing her, unequivocally, to immediately cease that association, and after being informed that he had a

criminal record, including a violent felony conviction. There was no justification for her continued association for that long a time period with K.H., nor for her repeated defiance of the lawful orders she received from the Department. Accordingly, I find Respondent Guilty of Specifications 1 and 2 in each of the two matters.

There are several additional charges under Case No. 2023-28857. Specification 3 alleges that Respondent wrongfully displayed her parking plaque in the windshield of her vehicle on April 21, 2023. Respondent pleaded guilty to this charge, admitting that she did have the plaque in her window while she was off-duty, and not engaged in official police business. Accordingly, I find her Guilty of Specification 3.

Specification 4 charges Respondent with wrongfully using the Department's database to conduct several inquiries. Respondent pleaded guilty to doing so, admitting that she ran searches on vehicles belonging to her and K.H.'s mother in order to check for summonses. She also conducted an inquiry of a job that came through on K.H.'s block to see if it occurred at the residence of K.H. and his mother. Respondent conceded that these searches were unrelated to the official business of the Department. Accordingly, I find her Guilty of Specification 4.

Specification 5 charges Respondent with failing to identify herself as an MOS after being involved in an off-duty incident on April 21, 2023. Specifically, it is alleged that during the altercation between police and K.H. by Respondent's personal vehicle, Respondent committed misconduct by not approaching the officers and identifying herself.

Two hours prior to that incident, Respondent observed officers walk up to her vehicle, which, as discussed above, wrongfully had an official parking plaque displayed in the window. Respondent did approach those two officers and engaged in a brief conversation, before walking

away. Respondent returned to the stoop, which was across the street from where her car was parked and about 10-15 feet to the side.

When the incident involving K.H. and police occurred two hours later, Respondent was still sitting on the stoop with K.H.'s mother and sister. Rather than involve herself in the altercation, she remained across the street. Respondent testified that she did not want to interfere and possibly make matters worse.

The record has failed to establish, by a preponderance of the credible evidence, that Respondent was "involved" in this incident. As Respondent stated, this matter involved K.H., not her, and she remained across the street the entire time. Indeed, the video footage capturing the altercation (Dept. Ex. 1B) does not show Respondent involved in any way in that altercation, nor was any officer present at the scene called as a witness to testify as to Respondent's involvement. Under these specific circumstances, Respondent did not commit misconduct by failing to identify herself to the officers. Accordingly, I find Respondent Not Guilty of Specification 5.

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached memorandum. Respondent has no formal disciplinary record. As noted above, Respondent was twice suspended for 30 days without pay, on July 25, 2023 and April 4, 2024, for her failure to obey a lawful order.

Respondent, who was appointed to the Department on January 9, 2012, has been found guilty of multiple charges, the most serious of which are “Criminal Association” and “Failure to Comply with a Lawful Order.” The Department Advocate asks that a penalty of Termination be imposed, based on the aggravated penalty for “Conduct Prejudicial to the Good Order and Efficiency of the Department.” However, this approach overlooks that there are specific guideline categories for these two offenses, each of which carries a presumptive penalty of 20 days, and an aggravated penalty of 30 days. Moreover, the specifications charging this misconduct reference Administrative Guide sections that cover the specific offenses alleged: Section 304-03, Page 1, Paragraph 2, which deals with compliance with orders, and Section 304-06, Page 2, Paragraph 8C, which prohibits criminal association. As such, this tribunal will follow the specific guidelines for each offense in order to formulate a penalty recommendation.

On the one hand, this tribunal is sympathetic to the instances of abuse described by Respondent at trial. Nevertheless, in the absence of any effort on her part to seek the Department’s help, Respondent must be held responsible for her failure to abide by the clear rules of the Administrative Guide, which prohibit criminal association and require compliance with lawful orders. It is deeply troubling that Respondent continued to associate with K.H. for a period of eight months, after being specifically informed that he had a criminal record, including a violent felony conviction, and despite being ordered by the Department, *twice*, to cease the association immediately. Because of Respondent’s actions, the Department devoted extensive time and resources, including surveillance, to monitoring this situation. Respondent’s conduct during this time period was unacceptable, and there must be appropriate accountability.

Specifications 1 and 2 of *Case No. 2023-28857* capture the time period from May 3, 2023 through July 25, 2023, following the May 3 official Department interview. During that time,

Respondent continued to associate with K.H., in violation of the Administrative Guide rule prohibiting such association. For that misconduct, the presumptive penalty of *20 days* is appropriate. She also disobeyed a clear, lawful order instructing her to stay away from K.H., a distinct offense. For that misconduct, an additional presumptive penalty of *20 days* is appropriate. These were discrete offenses, not intrinsic to one another. Since Respondent not only associated with K.H., which is itself misconduct, but also chose to disobey a lawful order after the Department unequivocally made her aware of the severity of the situation, those penalties should run consecutive to each other, for a total of *40 penalty days*.

Had Respondent ceased her association after her July 25 interview, that would have been the extent of her discipline for these offenses. However, Respondent continued her association with K.H. until January 2024, and disobeyed that second order. Accordingly, under *Case No. 2024-30411*, which covers Respondent's misconduct during the time period from July 26, 2023 through January 14, 2024, the *aggravated* penalty of *30 days* each for Specifications 1 and 2 is appropriate, since this was the second time she had been ordered to cease her association, and the second time she disregarded that order and continued to associate with K.H. for approximately six additional months. Again, since Respondent is guilty of both wrongful association and disobeying a lawful order, distinct offenses, the penalties in that case should also run consecutive to each other, for a total of *60 penalty days*. Considering that the misconduct in these two cases encompassed two separate time periods, and involved disobeying two separate orders from the Department, the penalties for each case should run consecutive to each other, bringing the total number of penalty days for these offenses to *100 days*.

Respondent also has been found Guilty of two additional counts. For wrongfully displaying her parking plaque, an A-level command discipline offense, I recommend an

additional forfeiture of *five (5) penalty days*. For using the Department's database for unauthorized inquiries, I recommend a consecutive forfeiture of *twenty (20) penalty days*, the aggravated penalty for this offense, since the inquiries were related to an address and vehicle connected with K.H., further illustrating the problems that arise when an MOS violates the Department's rule prohibiting criminal association. These offenses are separate and apart from the other misconduct, and so I recommend that these *25 penalty days* run consecutive to the 100 days discussed above, bringing the total number of penalty days for these two matters to *one hundred twenty-five (125) days*.

According to the Disciplinary Guidelines, when "the total number of penalty days is calculated at greater than 90 days, the presumed penalty shall be termination or forced separation." Moreover, given Respondent's knowing and extensive association with K.H., whose criminal history includes a conviction for a violent felony offense, and her blatant disregard of two separate orders to immediately cease that association, Respondent's continued employment with the Department is untenable. Taking into account the totality of the facts and circumstances in these two matters, I recommend a penalty of Termination from the Department.

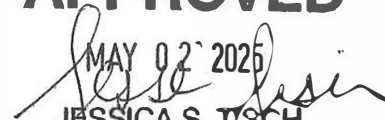
Respectfully submitted,



Jeff S. Adler

Assistant Deputy Commissioner Trials

APPROVED



MAY 02 2025
JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER ALISA BAJRAKTAREVIC
TAX REGISTRY NO. 951518
DISCIPLINARY CASE NO. 2023-28857 & 2024-30411

Respondent was appointed to the Department on January 9, 2012. On her last three annual performance evaluations, she was twice rated “Exceeds Expectations” for 2021 and 2024, and once rated “Exceptional” for 2023. She has been awarded three medals for Excellent Police Duty.

Respondent has no formal disciplinary history. In connection with the first case, she was suspended without pay from July 25 through August 23, 2023. In connection with the second case, she was again suspended without pay from April 4 through May 5, 2024. Additionally, Respondent was placed on Level 1 Discipline Monitoring in May 2023, which was upgraded to Level 2 Discipline Monitoring in May 2024. Monitoring remains ongoing.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials